

CITY COUNCIL MEETING MINUTES

6:00 PM – November 20, 2017

Cadillac City Hall – 200 N. Lake St. - Cadillac, Michigan 49601

CALL TO ORDER

Mayor Filkins called the City Council meeting to order at approximately 6:00 pm.

PLEDGE OF ALLEGIANCE

OATH OF OFFICE

City Clerk administered the Oath of Office to Council Member Engels. Engels will represent Ward Three filling the partial term expiring on December 31, 2019.

ROLL CALL

Council Present:	Spoelman, Schippers, Meinhardt, Engels, Mayor Filkins
Council Absent:	None
Staff Present:	Peccia, Dietlin, Osborn, Coy, Izzard, Wasson

APPROVAL OF AGENDA

2017-221 Approve agenda as presented.

Motion was made by Spoelman and supported by Meinhardt to approve the agenda as presented.

Motion unanimously approved.

PUBLIC COMMENTS

Tim Elenbaas discussed the cost of converting Court #4 at Diggins Hill to a pickleball court.

John Fuscone spoke in opposition of the proposed injection well at the Wexford County landfill.

Larry Paquette discussed four (4) examples of injection wells that have failed.

CONSENT AGENDA

2017-222 Approve consent agenda as presented.

Motion was made by Spoelman and supported by Schippers to approve the consent agenda as presented.

Motion unanimously approved.

COMMUNICATIONS

A. Cadillac Garden Club – Wooden Sculpture Display.

June Peterson, Cadillac Garden Club President, described the various sculptures. She noted the sculptures will represent the history of women. She noted they will be placed along the Keith McKellop Walkway to advertise the Art Fair, the Up North Arts Center, and the Standard Flower Show.

Peccia asked Council to consider extending the number of days for the display.

Engels asked if the metal posts supporting the sculptures will cause any issues.

Peccia stated the posts may strike an irrigation line which has occurred in the past.

2017-223 Approve Cadillac Garden Club – Wooden Sculpture Display.

Motion was made by Schippers and supported by Spoelman to approve the request from the Cadillac Garden Club to place up to seven (7) wooden sculptures along the Keith McKellop Walkway from July 18, 2018 to July 21, 2018.

Motion unanimously approved.

APPOINTMENTS

A. Recommendation regarding appointment to the Planning Commission.

2017-224 Approve appointment to Planning Commission.

Motion was made by Schippers and supported by Engels to approve the appointment of Joseph Baumann to the Planning Commission for a 3-year term to expire on November 20, 2020.

Engels commented on the application submitted by Joseph Baumann. He asked if the openings on the various boards and commission could be advertised again.

Motion unanimously approved.

B. Election of Mayor Pro Tem.

Peccia stated that the Council at its first meeting after the regular city election shall elect one of its members to serve as Mayor Pro Tem to coincide with the Mayor's 2-year term of office. He noted in accordance with the Charter provision, the City Clerk will distribute blank pieces of paper to each Council Member to serve as a ballot for the purposes of writing the name of the Council Member that they wish to select as Mayor Pro Tem. The City Clerk will collect the ballots, tally, and then read aloud the results.

Council Member Spoelman was elected Mayor Pro Tem by unanimous vote.

CITY MANAGER'S REPORT

A. Bids and recommendation regarding Ferric Chloride.

Peccia stated three (3) bids were received. He noted approximately \$40,000 a year is spent on ferric chloride. He stated the recommendation is to award the contract to lowest bidder, Webb Chemical Service Corporation, at a price of \$0.245 per dry pound. He noted

funds are available in the Nutrient Removal Department of the Water and Sewer Fund.

Jeff Dietlin, Director of Utilities, stated ferric chloride is the only chemical that is added at the Waste Water Treatment Plant. He noted it is added to remove phosphorus.

2017-225 Award contract for purchase of Ferric Chloride.

Motion was made by Engels and supported by Meinhardt to award the contract for the purchase of Ferric Chloride for the period January 1, 2018 through December 31, 2020 to Webb Chemical Service Corporation at a price of \$0.245 per dry pound.

Motion unanimously approved.

B. Bids and recommendation regarding Liquid Phosphate.

Peccia noted liquid phosphate is used by the Water Department to treat iron in the municipal water supply. He stated two (2) bids were received and the recommendation is to award the contract to the lowest bidder, Elhorn Engineering Company, at a price of \$0.64 per pound. He noted the Water Department utilizes approximately 24,000 pounds of liquid phosphate per year. He stated funds are available in the Pumping Station Department of the Water and Sewer Fund.

2017-226 Award contract for purchase of Liquid Phosphate.

Motion was made by Schippers and supported by Meinhardt to award the contract for the purchase of Liquid Phosphate for the period January 1, 2018 through December 31, 2020 to Elhorn Engineering Company at a price of \$0.64 per pound.

Motion unanimously approved.

C. Recommendation regarding Locker Room Project at Cadillac Waste Water Treatment Plant.

Peccia noted the Capital Improvement Program included a project to renovate a portion of a building at the Waste Water Treatment Plant into a locker room and shower facility. He stated the project was estimated to cost \$40,000. He noted no bids were received for the project. He stated City staff will provide general construction management and also perform some of the work which will likely reduce the cost of the project. He stated the City received bids from various contractors for each component of the project. He noted that while no individual component of the project is in excess of the City Manager's spending threshold of \$7,500, the project in total will exceed this amount so approval of the Council is requested.

Dietlin stated the current men's locker room facility was constructed in 1963 and was designed to support 3-4 employees. He noted there are currently seven (7) male employees so there are some who do not have lockers. He added that the room designated as the changing room does not exist any longer due to the current staff size. He stated the project will also result in the creation of a deck area above the locker room that will provide an additional storage area.

Dietlin noted he would prefer that employees leave their work clothes at the facility rather than taking them home for laundering.

Mayor Filkins asked if the City has a laundry service.

Dietlin noted a laundry service is provided but is not always utilized because there is currently no changing area available.

Spoelman asked about the timeframe for the project.

Dietlin stated he believes the project will be completed by March 2018.

2017-227 Approve Locker Room Project at Cadillac Waste Water Treatment Plant.

Motion was made by Spoelman and supported by Schippers to approve the Locker Room Project at the Cadillac Waste Water Treatment Plant in an amount not to exceed \$40,000 with a combination of City crew labor and subcontractor labor at the amount provided as quotes.

Motion unanimously approved.

INTRODUCTION OF ORDINANCES AND RESOLUTIONS

- A. Adopt Resolution to Introduce Ordinance Vacating James E. Potvin Street and Reserving a Public Utility Easement in Favor of the City of Cadillac and set a public hearing for December 18, 2017.

Peccia noted representatives from Piranha Hose Products are in attendance. He stated Piranha Hose Products is in the process of acquiring just over twenty-eight (28) acres of land across the street from their current facility. He explained that as a part of the acquisition of the property they are requesting the City vacate a “paper road” to allow them to incorporate the area into their project.

Peccia stated this item will be on the Planning Commission agenda for the meeting which is scheduled on November 27, 2017.

Peccia noted the public hearing will be scheduled for December 18, 2017.

2017-228 Set public hearing for Ordinance 2017-08.

Motion was made by Schippers and supported by Spoelman to adopt the Resolution to Introduce Ordinance Vacating James E. Potvin Street and Reserving a Public Utility Easement in Favor of the City of Cadillac and set a public hearing for December 18, 2018.

Motion unanimously approved.

- B. Adopt Resolution to Introduce Ordinance to Approve Sale Agreement and Authorize Sale of Real Property (Within James E. Potvin Industrial Park) and set a public hearing for December 18, 2017.

Spoelman asked about the wetland mitigation area.

Peccia stated Piranha Hose Products is well aware of the location of the wetlands. He noted City staff and members of Piranha Hose Products have been in discussions for about a year regarding this property. He explained the wetland area and fire safety access needs were taken into consideration during the discussions.

Peccia noted the public hearing will be scheduled for December 18, 2017.

Brian Blake, Piranha Hose Products, thanked everyone for their support. He noted he was especially appreciative of the support provided during the visit by their corporate board members, including the CEO from Japan. He explained the corporate board has decided to look at Cadillac as their future investment for a manufacturing hub in North America.

Spoelman stated she believes it is probably one of the most exciting opportunities we have had in the Industrial Park in a really long time. She noted she appreciates the effort by Piranha Hose Products to have this expansion in Cadillac.

Mayor Filkins asked if they knew how many positions will be created as a result of the expansion.

Brian Blake stated the job creation numbers are unknown at this time.

Mayor Filkins asked if their board members had shared any feedback on the community.

Brian Blake noted the visit finalized the decision-making process. He stated that once the board members saw face-to-face the support provided to Piranha Hose Products they were confident to make the decision.

2017-229 Set public hearing for Ordinance 2017-09.

Motion was made by Spoelman and supported by Meinhardt to adopt the Resolution to Introduce Ordinance to Approve Sale Agreement and Authorize Sale of Real Property (Within James E. Potvin Industrial Park) and set a public hearing for December 18, 2017.

Motion unanimously approved.

ADOPTION OF ORDINANCES AND RESOLUTIONS

- A. Adopt resolution regarding the Wexford County Michigan Natural Hazards Mitigation Plan.

Peccia noted Sarah Benson, Wexford County Emergency Management Director, is in attendance to provide background information on the Natural Hazards Mitigation Plan.

Sarah Benson stated that in order to maintain eligibility for FEMA's Hazard Mitigation Pre-Disaster and Post-Disaster Grants every county in the country must have a Hazard Mitigation Plan. She noted most counties in northwest Lower Michigan contract with Networks Northwest to assist with the development of the Plan. She stated that the

advantage of the City of Cadillac adopting the Plan is eligibility for Hazard Mitigation Grants. She noted City stakeholders had input into the Plan and she thanked Fred Osborn, Cadillac Fire Department, for bringing this back to the forefront.

Mayor Filkins stated it is a wonderful reminder of how the various agencies work together.

Spoelman asked if there was a reason it has taken a while for it to be brought to the Council.

Sarah Benson stated part of the reason is not having enough time to get to every jurisdiction. She noted it was reintroduced when FEMA started conducting floodplain remapping for the Muskegon River Watershed. She stated Fred Osborn was in attendance at one of the discovery meetings and brought the project back to the forefront.

Engels asked if the City did have public infrastructure damage prior to the adoption of the plan would it not have been eligible for grant money in the event of a disaster.

Sarah Benson stated adopting the Plan makes it more difficult to deny grant money.

Engels asked if FEMA holds the County or the City accountable for the adopted time frames.

Sarah Benson stated they do not. She noted it is not a prescriptive plan but is an attempt to dedicate benchmarks to some of the projects.

2017-230 Adopt resolution regarding the Wexford County Michigan Natural Hazards Mitigation Plan.
Motion was made by Schippers and supported by Meinhardt to adopt the resolution regarding Wexford County Michigan Natural Hazards Mitigation Plan.

Motion unanimously approved.

B. Adopt Resolution Opposing Injection Well Permit.

Peccia stated it is important to publicly advise the City Council that the City does benefit from the company depositing the waste material in the City's sanitary sewer Waste Water Treatment Facility. He noted the material is commonly called leachate and the City is paid to treat the waste material. He added that absent there being another option for them, such as the deep injection well concept, they are currently taking the waste product to the City to be treated in an environmentally conscious manner. He stated a deep injection well would take that revenue source away from the City.

Peccia noted the reason the resolution is being brought forward has absolutely nothing to do

with the revenue source coming to the City. He stated it is to allow a dialog to determine if Council wants to oppose or not oppose the draft permit.

Dietlin stated the landfill is proposing to utilize a deep well injection in which raw product is injected into the ground. He noted the theory behind deep well injection is that the material is placed into the ground deep enough to not cause any harm. He stated he assumes some wells are safe but in this situation there is a treatment option available. He added the material has been treated by the City for years and it is treated to a standard that it can be discharged back into the environment.

Peccia noted they are proposing to inject the raw waste material thousands of feet deep underneath the drinking water aquifers and then capping it with a mortar-type of concrete. He stated this is a very simplistic explanation of the concept. He explained the theory is that the material will be injected deep enough that is away from the drinking water supply and it will then be capped so in the event there is underground movement it will not leak.

Mayor Filkins asked if American Waste has injection wells in the Traverse Area or does it utilize the waste water treatment plant in the same manner as they do in Wexford County.

John Fuscone stated there are no injection wells in Grand Traverse County.

Schippers noted this area has suffered from groundwater contamination for decades and it is still being mitigated. She added that putting additional untreated material into the ground when there is an environmentally-sound treatment option that is economical and in close proximity is unfathomable.

Spoelman inquired how the item ended up on the agenda because it does not affect the City of Cadillac.

Peccia stated it is included on the agenda because the public commenting period through the EPA to accept comments on this item is currently open. He added the City is located within Wexford County and the City is currently responsible for treating the waste and discharging the treated water back into the environment. He noted Wexford County, along with the City of Manton, have taken a position on the proposed draft permit.

Dietlin noted the City received a letter from the EPA regarding the deep well injection so he is assuming all of the municipalities in Wexford County received letters.

Engels asked if the City obtains water from the same area as the proposed injection well.

Dietlin noted the water usually flows to the northwest so it is north of the City's wellfield. Engels asked if the leachate is generated from rainwater passing through the landfill.

Dietlin noted it is composed of both rain water and liquid from garbage. He added the water

is collected in the bottom of the cells, pumped to a tank, and then hauled to the City's Waste Water Treatment Facility.

2017-232 Adopt Resolution Opposing Injection Well Permit.

Motion was made by Schippers and supported by Meinhardt to adopt the Resolution Opposing the Issuance of Wexford Water Technologies' Draft Permit Number MI-165-1I-0002 by the Environmental Protection Agency in the City of Manton, County of Wexford.

Motion unanimously approved.

MINUTES AND REPORTS OF BOARDS AND COMMISSIONS

A. Downtown Development Authority

PUBLIC COMMENTS

John Fuscone thanked Council for approving the resolution regarding the injection well permit.

Dean Rohn, Piranha Hose Products, thanked everyone for the cooperation and the work that has been done over the years in support of Piranha Hose Products.

Larry Paquette expressed concern regarding the injection well permit and requested individuals send emails to the EPA and MDEQ expressing the reasons for their opposition. He noted the public comment period ends on November 22, 2017.

GOOD OF THE ORDER

Spoelman stated she wanted to clarify the reason she inquired about why the injection well permit was placed on the agenda even though it is not within the City's jurisdiction. She noted water is very important and she understands what it must be like to live in that area. She explained there has been a lot of dialog within the organization she works for regarding the results of drinking water tests across the State. She apologized if her question sounded insensitive to the issue.

Spoelman suggested revising the application for board appointments to include a question regarding "Why do you want to serve on this board?"

Spoelman stated it is an honor to be selected as Mayor Pro Tem.

Spoelman asked for clarification as to why Council Member Engels was sworn-in during the meeting because she was under the impression that his term ended at the end of the year and he has already been sworn-in.

Engels noted, if not elected, his term would have ended at this meeting.

Spoelman stated he was appointed so he was serving until the next election so it is different than an election in which case the term would expire at the end of the year.

Schippers noted the Mayor's Youth Council will meet on the second Wednesday in December due to the proximity of the holidays. She stated two (2) new members have been appointed to the Mayor's Youth

Council and they will be sworn-in at the meeting on December 13, 2017. She added the bylaws have been amended to include any student who works, lives, or attends school in Cadillac.

Peccia mentioned materials and the use of heavy equipment were donated to bring the Christmas tree to the Plaza. He noted the Tree Lighting Ceremony will be held at 5:30 pm on November 24, 2017. He added that a local industry has already stepped forward committing to sponsor a tree in 2018.

Peccia stated the City is exploring other ways to create opportunities for businesses and residents. He noted he is embarking on exploring the ins and outs of becoming a Municipal Electric Utility.

Mayor Filkins mentioned the holiday preparations. She thanked the Public Works and Forestry Departments for their efforts. She suggested having community members decorate boxes to be placed near the tree. She thanked the Wexford County Historical Museum for the display in the entryway. She noted Thin Blue Line yard signs are once again available to show support for first responders. She stated the Cadillac High School Marching Band will be performing at the Thanksgiving Day Parade in Detroit.

ADJOURNMENT

Respectfully submitted,

Carla J. Filkins, Mayor

Sandra L. Wasson, City Clerk